

Pradeep Kumar v. State of U.P. and others

Allahabad High Court · Division Bench · 15 April 2011 · Writ-C No. 21382 of 2011 · **Writ dismissed; petitioner relegated to CGRF under clause 4.6.**

HEADNOTE

The Allahabad High Court declined to interfere in a writ over a revised estimate, holding that such a dispute, as distinct from a bill, is for the Consumer Grievance Redressal Forum under clause 4.6 of the U.P. Electricity Supply Code, 2005. The petition was dismissed without costs, without prejudice to approaching the Forum.

FACTUAL SUMMARY

Pradeep Kumar filed Writ-C No. 21382 of 2011 in the Allahabad High Court against the State of U.P. and others. The controversy, as recorded, was a revised estimate for electricity supply and not a billed amount. A Division Bench of Amitava Lala and Sanjay Misra, JJ. disposed of the petition at the threshold on 15 April 2011, without costs, leaving the petitioner free to take the estimate dispute to the Consumer Grievance Redressal Forum.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.6

CGRF forum for revised-estimate disputes

HOLDING

A dispute about a revised estimate, as distinct from a bill, is to be considered by the Consumer Grievance Redressal Forum under clause 4.6 of the U.P. Electricity Supply Code, 2005; the High Court will not interfere in writ jurisdiction. Dismissal does not affect any right to approach the Forum. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE REVISED ESTIMATE

Merits of the estimate were left to the CGRF; the writ court did not examine them. ¶ 1